

EC059570 EC059570

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[TENTATIVE] ORDER DENYING PLAINTIFF'S MOTION FOR ATTORNEYS' FEES

I. INTRODUCTION

Plaintiff Iris Manuel ("Plaintiff") filed this employment action on November 28, 2012.

On July 6, 2021, Plaintiff filed the operative First Amended Complaint ("FAC") against Defendants Vardoui Madatian, Robert Madatian, Rose Home Health Agency, Inc., Glendale Home Healthcare, Inc., and Does 1 through 100, inclusive, asserting the following causes of action: (1) failure to pay wages, including overtime, in violation of Labor Code, and in breach of contract; (2) waiting time penalties for violation of Labor Code SECTION 203; (3) conversion; (4) violation of Labor Code SECTION 226; (5) violation of Labor Code SECTION 1198.5; (6) violation of Labor Code SECTION 432; (7) abuse of process; and (8) unfair competition in violation of Business & Professions Code SECTIONS 17200, et seq.

On December 3, 2021, Plaintiff dismissed the Doe defendants.

On March 3, 2023, the Court granted Defendants Robert and Vardoui Madatian's (opposed) special motion to strike the seventh cause of action in the FAC.

Bench trial took place from April 30, 2024, through May 6, 2024. During trial, on May 2, 2024, Defendants moved for judgment pursuant to CCP 631.8. The Court granted the motion as to the fifth and sixth causes of action.

On June 14, 2024, the Court held hearing on "Motion – Other to dismiss pursuant to the five year rule; Hearing – Other Arguments from respective parties as to the court trial." The Court found that Plaintiff was an employee and not an independent contractor. The Court also dismissed Plaintiff's third cause of action for conversion.

On October 11, 2024, the Court issued its final written statement of decision after the trial, finding in favor of Plaintiff as to the first, second, and fourth causes of action. Although Plaintiff had met her burden of proving the eighth cause of action for unfair competition, she conceded that she was not entitled to additional relief for that claim. Therefore, the Court took no further action as to that claim. The Court awarded Plaintiff total damages of \$33,623.06.

On October 21, 2024, the Court entered judgment.

On November 6, 2024, the Court entered an amended judgment (the "Judgment") in favor of Plaintiff and against the defendants as follows.

a. "On the First Cause of Action: \$19,673.06 against Defendants Vardoui Madatian, Robert Madatian, Rose Home Health Agency, Inc., and Glendale Home Healthcare, Inc. [collectively, "Defendants"]

b. On the Second Cause of Action: \$13,200 against [Defendants]

c. On the Fourth Cause of Action: \$750 against Defendants Robert Madatian, Rose Home Health Agency, Inc., and Glendale Home Healthcare, Inc.

d. Total damages awarded to Plaintiff: \$33,623.06 against [Defendants]. In light of the Court's rulings in its statement of decision, including its finding of alter ego liability with respect to Defendants Vardoui Madatian and Robert Madatian (see Minute Order, dated October 11, 2024, at pp. 10-13 and pp. 22-24), all of the Defendants are jointly and severally liable for all of the damages awarded to Plaintiff Iris Manuel in this Judgment."

(Judgment, p. 2:8-22.) The judgment further stated: "Plaintiff Iris Manuel may request attorneys' fees and costs through a properly noticed motion. Defendant may file an opposition to the motion, and Plaintiff may file a reply to any such opposition." (Id., p. 3:1-3.)

On December 13, 2024, Defendants appealed the judgment.

On August 15, 2025, the Court of Appeal dismissed the appeal pursuant to Defendants' request to dismiss.

On April 24, 2026, Plaintiff filed the instant "Motion for Attorneys' Fees and Costs Against All Defendants."

On May 7, 2026, Defendants filed their opposition along with evidentiary objections.

On May 13, 2026, Plaintiff filed his reply.

At the May 20, 2026, hearing, the Court continued the hearing on Plaintiff's motion for attorney's fees pending the Bankruptcy Court's ruling on Defendant's motion for clarification. The Court also ordered the parties to submit supplemental briefs following the Bankruptcy Court's ruling.

On July 9, 2026, Plaintiff filed a supplemental brief. On July 17, 2026, Defendant filed a supplemental brief.

II. LEGAL STANDARD

Plaintiff moves for reasonable attorney's fees and costs pursuant to Labor Code section 218.5, subdivision (a). (Motion, p. 1:5-7.)

"Under section 218.5, the court must award the prevailing party reasonable attorney fees and costs '[i]n any action brought for the nonpayment of wages,' if any party requested fees and costs at the beginning of the action ([Lab. Code] § 218.5, subd. (a); [citation])" (Betancourt v. OS Restaurant Services, LLC (2022) 83 Cal.App.5th 132, 140.)

"The amount of attorney fees awarded is often computed in accordance with the familiar 'lodestar' method. [Citation.] Under this method, '[t]he court tabulates the attorney fee touchstone, or lodestar, by multiplying the number of hours reasonably expended by the reasonable hourly rate prevailing in the community for similar work.' [Citation.] In order for the trial court to determine a reasonable rate and a reasonable number of hours spent on a case, a party must present some evidence to support its award request. [Citation.] The declaration of an attorney as to the number of hours worked on a particular case may be sufficient evidence to support an award of attorney fees, even in the absence of detailed time records. [Citation.] Indeed, sufficient evidence to support an attorney fee award may include [d]eclarations of counsel setting forth the reasonable hourly rate, the number of hours worked and the tasks performed.' [Citation.] There is no requirement that an attorney provide time records or billing statements." (Cruz, supra, 57 Cal.App.5th at pp. 237–238.)

III. ANALYSIS

At the May 20, 2026, hearing, the Court continued Plaintiff's motion for attorney's fees and costs pending the Bankruptcy Court's ruling on Defendant Vardoui Madatian's Motion for Clarification concerning the scope of the Bankruptcy Court's prior relief from stay orders. The Court also ordered the parties to submit supplemental briefing following the Bankruptcy Court's ruling.

The Bankruptcy Court has since heard and ruled on the Motion for Clarification, and the parties have submitted supplemental briefs. Having reviewed the supplemental briefs, the Bankruptcy Court's order, and the related record, the Court makes the following findings.

The motion for attorney's fees is untimely

In the moving papers, Plaintiff argued that the instant motion was timely because Plaintiff believed the Bankruptcy Court's 2020 relief from stay order authorized Plaintiff to litigate this action only through entry of judgment, but not to seek attorney's fees thereafter. Plaintiff maintained that additional relief from the automatic stay was therefore required before filing the instant motion. Plaintiff subsequently sought and obtained a second relief from stay order from the Bankruptcy Court authorizing Plaintiff to file the instant motion by April 24, 2026. Based on that order, Plaintiff contended the motion was timely because it was filed by the Bankruptcy Court's April 24, 2026, deadline. (Motion, pp. 3-4.)

Defendants opposed, arguing that the motion is untimely because California Rules of Court, rule 3.1702(b)(1), required Plaintiff to file any motion for attorney's fees within the time for filing a notice of appeal—60 days after service of the Notice of Entry of Judgment. Because the Notice of Entry of Judgment was served on November 11, 2024, Defendants contend Plaintiff was required to file the instant motion by January 6, 2025, but did not do so until April 24, 2026. Defendants further argue that the Bankruptcy Court's 2020 relief from stay order already authorized Plaintiff to prosecute any motion for attorney's fees and costs, and therefore the April 2026 relief from stay order neither created a new filing deadline nor revived an expired one.

At the May 20, 2026, hearing, this Court continued the matter pending the Bankruptcy Court's ruling on Defendant Vardoui Madatian's Motion for Clarification concerning the scope of the Bankruptcy Court's 2020 relief from stay order. Because the parties disputed the meaning and effect of that order, the Court continued the hearing to permit the Bankruptcy Court to clarify its own ruling. (5/20/26 Minute Order, p. 9.)

On May 26, 2026, the Bankruptcy Court heard the Motion for Clarification. During the hearing, Judge Barash expressly rejected Plaintiff's interpretation of the prior relief from stay orders, stating, "There's nothing ambiguous about my words." The Bankruptcy Court further explained that Plaintiff "didn't seek reconsideration" of the original order, "didn't have a problem with it," and instead "just [didn't] like what it means once you got back to state court." (Bankr. Tr., p. 8:20-24.) Judge Barash further found Plaintiff's position "completely unpersuasive," stating there was "nothing ambiguous about my language," that Plaintiff was "conflating issues," and that the argument was "nonsensical." (Bankr. Tr., p. 9:7-12.)

In light of the Bankruptcy Court's clarification, Plaintiff now acknowledges that the clarification "undermines Plaintiff's argument that the Motion is timely" and instead requests that this Court excuse the untimely filing pursuant to California Rules of Court, rule 3.1702(d). (Plaintiff's Supp. Brief, pp. 1-4.) Thus, the Court finds that the instant motion for attorney's fees was not timely filed.

Plaintiff has not established good cause under 3.1702(d)

Plaintiff contends that, even if the motion is untimely, the Court should excuse the untimely filing pursuant to California Rules of Court, rule 3.1702(d). Plaintiff principally relies on *Lewow v. Surfside III Condominium Owners Assn., Inc.* (2012) 203 Cal.App.4th 128, arguing that counsel's belief regarding the scope of the Bankruptcy Court's relief from stay orders constituted an honest and reasonable mistake of law sufficient to establish good cause. The Court is not persuaded.

Rule 3.1702(d) provides that "[f]or good cause, the trial judge may extend the time for filing a motion for attorney's fees." In *Lewow*, the Court of Appeal explained that "[t]he determining factors are the reasonableness of the misconception and the justifiability of lack of determination of the correct law." Although "an honest mistake of law is a valid ground for relief where a problem is complex and debatable," "ignorance of the law coupled with negligence in ascertaining it will certainly sustain a finding denying relief." (Id. at pp. 135-136.)

Unlike *Lewow*, the record here does not demonstrate that counsel's interpretation of the Bankruptcy Court's orders constituted an objectively reasonable mistake of law. As discussed above, the Bankruptcy Court expressly rejected Plaintiff's interpretation of its own orders, stating there was "nothing ambiguous" about its language and finding Plaintiff's position "completely unpersuasive." (Bankr. Tr., pp. 8:20-24, 9:7-12.) This case is unlike *Lewow*, where the Court of Appeal found the underlying legal issue to be "complex and debatable." Here, the Bankruptcy Court made clear that its relief from stay orders were unambiguous and that Plaintiff's interpretation was incorrect. This significantly undercuts Plaintiff's contention that counsel's misunderstanding was an honest and objectively reasonable mistake of law. Under these circumstances, the Court cannot conclude that counsel's interpretation falls within the type of reasonable mistake contemplated by *Lewow*.

Based on the foregoing, the Court finds that Plaintiff has failed to establish good cause under California Rules of Court, rule 3.1702(d). The Court declines to exercise its discretion to excuse the untimely filing of the motion. The motion for attorney's fees is therefore DENIED as untimely.

Because the motion is denied as untimely, the Court need not reach Defendants' remaining arguments regarding Plaintiff's prevailing party status or the reasonableness of the requested attorney's fees.

IV. CONCLUSION & ORDER

The Court DENIES Plaintiff's motion for attorney's fees.

Plaintiff to give notice.

Dated: July 29, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT